NATIONAL COMPANY LAW TRIBUNAL
GUWAHATI BENCH
GUWAHATI

C.A. (CAA) No. 06/GB/2022

Coram:
Hon'ble Shri Deep Chandra Joshi, Member (J): **Hearing through**
Hon'ble Shri Prasanta Kumar Mohanty, Member (T): **Video Conference**

ATTENDANCE-CUM- ORDER SHEET OF THE HEARING OF GUWAHATI BENCH OF THE NATIONAL COMPANY LAW TRIBUNAL ON 05.08.2022

In the matter of:
Anannya Realtors Private Limited
...Demerged Company
And
Maa Kamakhya AAA Infra Private Limited
...Resulting Company No. 1
And
Rasmiti Infra Private Limited
...Resulting Company No. 2
And
Starling Projects Private Limited
...Resulting Company No. 3

Section: Under Section 230 to 232 of Companies Act, 2013

S. NO.	NAME (CAPITAL LETTERS)	DESIGNATION	REPRESENTATION	SIGNATURE
1.	NONE	Advocate	Petitioners	Present in Video Conference

ORDER

The case is fixed for pronouncement of Order. The Order pronounced in open court vide separate sheets enclosed.

Sd/-
(Prasanta Kumar Mohanty)
Member (Technical)

Sd/-
(Deep Chandra Joshi)
Member (Judicial)

NATIONAL COMPANY LAW TRIBUNAL
GUWAHATI BENCH
GUWAHATI

C.A. (CAA) No. 06/GB/2022

Under Section 230 to 232 of Companies Act, 2013

In the matter of:

Anannya Realtors Private Limited
(CIN: 70101AS2005PTC007864)
A Company incorporated under the provisions
Of the Companies Act, 1956 and having its
Registered Office at House No. 3, 2nd Floor,
FCI Gate, Swahid Parag Das Path,
P.S Chandmari, Bamunimaidan,
Guwahati, 781021

... Demerged Company

AND

Maa Kamakhya AAA Infra Private Limited
(CIN: U70109AS2019PTC019564)
A Company incorporated under the provisions
Of the Companies Act, 2013 and having its
Registered Office at Room No. 11, Brindaban
Market, S.J Road Athgaon, Guwahati-781001

... Resulting Company No. 1

AND

Rasmiti Infra Private Limited
(CIN: U70200AS2019PTC019552)
A Company incorporated under the provisions
Of the Companies Act, 2013 and having its
Registered Office at Room No. 18, Chandan Nagar
Path, Survey Beltola, Guwahati-781028

... Resulting Company No. 2

AND

Starling Projects Private Limited
(CIN: U70101AS2004PTC007401)
A Company incorporated under the provisions
Of the Companies Act, 2013 and having its
Registered Office at 8th Floor, Sethi Trust Building
Unit-II, Bhangagarh, G.S Road, Guwahati-781005.

... Resulting Company No. 3

Coram: **Hon'ble Shri Deep Chandra Joshi, Member (J)**
Hon'ble Shri Prasanta Kumar Mohanty, Member (T)

Order delivered on: 05.08.2022

ORDER
[Per Se: Shri Prasanta Kumar Mohanty, Member(T)]

1. This Application has been filed under Sections 230 to 232 of the Companies Act, 2013, read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 is to obtain sanction of this Tribunal to a Scheme of Arrangement between **Anannya Realtors Private Limited (Demerged Company)** and **Maa Kamakhya AAA Infra Private Limited (Resulting Company No. 1)**; **Rasmiti Infra Private Limited (Resulting Company No. 2) and Starling Projects Private Limited (Resulting Company No. 3)** with appointed date being **1st April, 2021** whereby**:**

a. **Demerger of Brokerage & Commission Division of Anannya Realtors Private Limited to Maa Kamakhya AAA Infra Private Limited** pursuant to Section 230 to 232 of the Companies Act, 2013 and read together with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

b. **Demerger of Advisory Division of Anannya Realtors Private Limited to Rasmiti Infra Private Limited** pursuant to Section 230 to 232 of the Companies Act, 2013 and read together with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

c. **Demerger of Trading Division of Anannya Realtors Private Limited to Starling Projects Private Limited** pursuant to Section 230 to 232 of the Companies Act, 2013 and read together with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

A copy of the Scheme of Arrangement has been annexed**.**

2. The Applicants have prayed for the following reliefs:

i. for dispensing with the meeting of equity Shareholders of the Maa Kamakhya/ Resulting Company No. 1; Rasmiti Infra/ Resulting Company No. 2 and Starling Projects/ Resulting Company No. 3 as all the equity Shareholders of the RESULTING COMPANIES have given their written consents adopting the Scheme of Arrangement without any modification.

ii. declaring that there is no requirement for holding of meeting of Secured Creditors of the Anannya Realtors/ Demerged Company as there is NIL Secured Creditor.

iii. for dispensing with the meeting of Unsecured Creditor of the Anannya Realtors/Demerged Company as the only unsecured creditor of the Anannya Realtors/Demerged Company has given his affidavit of consents adopting the Scheme of Arrangement without ant modifications.

iv. declaring that there is no requirement for holding of meeting of Secured Creditors of the Maa Kamakhya/ Resulting Company No. 1; Rasmiti Infra/ Resulting Company No. 2 and Starling Projects/ Resulting Company No. 3 as there are NIL Secured Creditors.

v. for dispensing with the meeting of Unsecured Creditor of the Maa Kamakhya/ Resulting Company No. 1 as all the Unsecured Creditor have given their affidavit of consent adopting the Scheme of Arrangement without any modification.

vi. for dispensing with the meeting of Unsecured Creditor of the Rasmiti Infra/ Resulting Company No. 2 as the only unsecured creditor has given his affidavit of consent adopting the Scheme of Arrangement without any modification.

vii. for dispensing with the meeting of Unsecured Creditor of the Starling Projects/ Resulting Company No. 3 as all the Unsecured Creditor has given his affidavit of consent adopting the Scheme of Arrangement without any modification.

c. Appropriate orders and/directions be passed by the Hon'ble bench

i. to convene and hold separate meeting of the Equity Shareholders of Anannya Realtors/ Demerged Company.

ii. fixing the date, time and venue of the meeting of the Equity Shareholders of Anannya Realtors/ Demerged Company.

iii. appointing Chairperson for the meeting of the Equity Shareholders of the Anannya Realtors/ Demerged Company.

iv. directing the Applicant Companies for publication of advertisement intimating meeting in the newspaper.

v. fixing quorum for the said meeting.

vi. for filing of report by the Chairperson appointed for the meetings.

d. Appropriate orders and/directions be passed by the Hon'ble bench granting leave for filing of Company petition for sanction and confirmation of the Scheme.

e. Appropriate orders and/directions be passed by the Hon'ble bench for serving notice upon Central Government through Regional Director, NER, Ministry of Corporate Affairs; Registrar of Companies, NER, Guwahati, and Income Tax Authorities having jurisdiction over the affairs of the Company.

3. The objects/reasons that have necessitated and/or justified the scheme of arrangement are as follows:

3.1 The demerger of business of Demerged Division of the Demerged Company and transfer and vesting of the same in the Resulting Company will enable the Resulting Companies to focus more on demerged division. the Demerged Company will also gain from the demerger since it can focus more on the remaining activities.

3.2 As part of an overall Scheme of Arrangement, the managements of the Demerged Company and Resulting Companies have concurred on a plan whereby Demerged Divisions of the Demerged Company will be demerged to and vested with the Resulting Companies.

3.3 The management of the Demerged Company is of the opinion that the arrangement will enable it to lend greater focus to the operations of remaining business in the undertaking.

3.4 The managements of the Resulting Companies are of the opinion that the arrangement will provide greater capacity and better utilization of its resources. The arrangement will also enable it to consolidate its business by restructuring and reorganizing its business activities and capital structure.

3.5 The present scheme of arrangement would involve transfer on a going concern basis, of the Demerged Divisions of Demerged Company to Resulting Companies and in consideration thereof the Resulting Companies will issue equity shares to the shareholders of the Demerged Company pursuant to Section 232 and the other relevant provisions of the Companies Act, 2013.

3.6 Post this restructuring both Demerged Company and Resulting Companies are expected to be better poised for meeting future growth opportunities, gain the advantage of cost savings and improvement of their earning potential.

3.7 The Board of Directors of the Resulting Companies and Demerged Company are of the opinion that the restructuring involving merger and demerger would benefit their shareholders, creditors, employees, the companies concerned.

4. The Applicants submit that:

4.1 The Board of Directors of the Demerged Company and Resulting Companies have at their Board meeting held on **23rd December, 2021** passed resolution approving the Scheme of Arrangement whereby the demerger of Demerged Divisions by the Demerged Company into the Resulting Companies has been annexed.

4.2 The assets of the applicant companies are sufficient to meet all their liabilities and the said scheme will not adversely affect the rights of any

of the creditors of any of the applicant companies in any manner whatsoever.

4.3 There will be no reduction of Share Capital of the Resulting Companies as per Section 66 of the Companies Act, 2013.

4.4 The present Scheme of Arrangement does not contain or provide for Corporate Debt Restructuring.

4.5 The Demerged Company as well as the Resulting Companies have never issued nor agreed to issue any debenture.

4.6 The Scheme does not contain nor it provide for any compromise with any creditors of the Resulting Companies and the Demerged Company. The right and interest of the Creditors of the Resulting Companies and the Demerged Company shall continue to remain protected by the Scheme.

4.7 The Applicant Companies have made due provisions for payment of all liabilities as and when the same fell due. In this connection, all the applicant companies crave leave to refer to the accounts, book and records of the applicant companies at the time of hearing, if necessary.

4.8 There are no proceedings pending under Section 235 to 251 of the Companies Act, 1956 and Section 217, 219, 221, 224 and 225 of the Companies Act, 2013 against any of the applicant companies.

4.9 The report determining the exchange ratio of shares, shall be issued and allotted to the equity shareholders of the Demerged Company by the Resulting Companies for implementation of the terms of the scheme has been prepared by an Independent IBBI Registered Valuer and such recommendations has been accepted by the Board of Directors of the respective Companies. Copy of such report has been annexed herewith.

4.10 **The total number of Equity Shareholders in the Anannya Realtors/ Demerged Company are 20 as on 31st December, 2021.** A copy of list of Equity Shareholders duly certified by the Statutory Auditors of the Anannya Realtors/ Demerged Company has been annexed.

4.11 **The total number of Equity Shareholders in the Maa Kamakhya/ Resulting Company No. 1 are 2 as on 31st December, 2021. All the**

Shareholders of the Maa Kamakhya/ Resulting Company No. 1 have given their written consents by way of affidavit to the Proposed Scheme of Arrangement. A copy of list of Equity Shareholders duly certified by the Statutory Auditors and affidavit by all the equity shareholders of the Maa Kamakhya/ Resulting Company No. 1 has been annexed.

4.12 **The total number of Equity Shareholders in the Rasmiti Infra/ Resulting Company No. 2 are 2 as on 31st December, 2021. All the Shareholders of the Rasmiti Infra/ Resulting Company No. 2 have given their written consents** by way of affidavit to the Proposed Scheme of Arrangement. A copy of list of Equity Shareholders duly certified by the Statutory Auditors and affidavit by all the equity shareholders of the Rasmiti Infra/ Resulting Company No. 2 has been annexed.

4.13 **The total number of Equity Shareholders in the Starling Projects/ Resulting Company No. 3 are 4 as on 31st December, 2021. All the Shareholders of the STARLING PROJECTS'/ Resulting Company No. 3 have given their written consents** by way of affidavit to the Proposed Scheme of Arrangement. A copy of list of Equity Shareholders duly certified by the Statutory Auditors and affidavit by all the equity shareholders of the Starling Projects/ Resulting Company No. 3 has been annexed.

4.14 **Anannya Realtors/ Demerged Company has NIL Secured Creditors as on 31st December, 2021. Further, Anannya Realtors/Demerged Company have 1 (One) Unsecured Creditor amounting to Rs. 2,45,323/- as on 31st December, 2021. The said Unsecured Creditor has given his consent** by way of an affidavit to the proposed Scheme of Arrangement. A Certificate from the Statutory Auditor of the Anannya Realtors/ Demerged Company certifying the NIL Secured Creditor and the list of Unsecured Creditors as on 31st December, 2021 along with the affidavit of consent of the said Unsecured Creditor has been annexed.

4.15 **Maa Kamakhya/ Resulting Company No. 1 has NIL Secured Creditors as on 31st December, 2021. Further, Maa Kamakhya/ Resulting**

Company No. 1 have 5 (Five) Unsecured Creditors amounting to Rs. 20,66,50,000/- as on 31st December, 2021. All the said Unsecured Creditors have given their consents by way of an affidavit to the proposed Scheme of Arrangement, without any modification to the scheme. A Certificate from the Statutory Auditor of the Maa Kamakhya/ Resulting Company No. 1 certifying the NIL Secured Creditor and the list of Unsecured Creditors along with affidavit of consents by the said unsecured creditors as on 31st December, 2021 have been annexed.

4.16 **Rasmiti Infra/ Resulting Company No. 2 has NIL Secured Creditors as on 31st December, 2021. Further, Rasmiti Infra/ Resulting Company No. 2 has 1 (One) Unsecured Creditors amounting to Rs. 37,500/- as on 31st December, 2021. The said Unsecured Creditor has given his consent** by way of an affidavit to the proposed Scheme of Arrangement, without any modification to the scheme. A Certificate from the Statutory Auditor of the Rasmiti Infra/ Resulting Company No. 2 certifying the NIL Secured Creditor and the list of Unsecured Creditor along with affidavit of consent by the said unsecured creditor has been annexed.

4.17 **Starling Projects/ Resulting Company No. 3 has NIL Secured Creditors as on 31st December, 2021. Further, Starling Projects/ Resulting Company No. 3 have 4 (Four) Unsecured Creditors amounting to Rs. 89,55,216/- as on 31st December, 2021. All the said Unsecured Creditors have given their consents** by way of an affidavit to the proposed Scheme of Arrangement, without any modification to the scheme. A Certificate from the Statutory Auditor of the Starling Projects/ Resulting Company No. 3 certifying the NIL Secured Creditor and the list of Unsecured Creditors along with affidavit of consent by the said unsecured creditors as on 31st December, 2021 have been annexed

4.18 Sri Ashok Kumar Jain, Sri Saran Adhar Bajoria, Sri Rajesh Jain, Sri Mahesh Kumar Agarwalla, Sri Dhiraj Kumar Jaiswal, Smt. Tanushree

Hazarika Agarwal and Sri Anil Kumar Bagri are the present Directors of the **Anannya Realtors/Demerged Company.**

4.19 Sri Ashwani Kumar Jaiswal, Sri Binod Kumar Jaiswal are the present Directors of the **Maa Kamakhya/ Resulting Company No. 1**. Miss Smriti Bhagat and Miss Rashi Bhagat are the present Directors of the **Rasmiti Infra/Resulting Company No. 2.** Sri Mahesh Kumar Agarwalla, Sri Prabhu Agarwalla, Sri Ajay Agarwala, Smt. Sobha Hazarika and Smt. Tanushree Hazarika Agarwal are the present Directors of the **Starling Projects/ Resulting Company No. 3.**

4.20 None of the Directors of the said respective companies have any material interest in the proposed Scheme of Arrangement except as Shareholders in General, the extent of which will appear from the Register of Director's Shareholding maintained by the respective applicant companies.

4.21 The Statutory Auditors of the **Demerged Company** and the **Resulting Companies** have certified that the Accounting treatment proposed in terms of Part-VII of the Scheme is in conformity with the Accounting Standard AS-14 issued by The Institute of the Chartered Accountants of India (ICAI) and as per Section 133 of the Act prescribed under Section 133 of the Companies Act, 2013. The Certificate issued by the Statutory Auditors has been annexed.

O R D E R

5. Heard the Ld. Counsel for the Applicants, perused the records, documents annexed to the application and affidavits filed in the instant proceedings and after hearing the submissions made on behalf of the applicants the following orders are passed:

5.1 In view of the consent given in affidavit form by all shareholders of the Resulting Companies, requirement of convening and holding of separate meetings of the equity shareholders of the applicant Resulting Companies are dispensed with.

5.2 In view of the fact that there are NIL Secured Creditor of the Demerged Company, the requirement of convening and holding separate meeting of the Secured Creditor of the Demerged Company does not arise.

5.3 In view of the fact that the only unsecured creditor of Anannya Realtors/Demerged Company has given his affidavit of consent adopting the Scheme of Arrangement, the convening and holding of the meeting of unsecured creditor is dispensed with.

5.4 In view of the fact that there are NIL Secured Creditors in all of the Resulting Companies, the requirement of convening and holding separate meetings of the Unsecured Creditors of the Resulting Companies does not arise.

5.5 In view of the fact that the all the Unsecured Creditors of the Resulting Companies have given their affidavit of consents adopting the Scheme of Arrangement without any modifications, the requirement of convening and holding separate meetings of the Unsecured Creditors of the Resulting Companies is dispensed with.

5.6 **The meeting of the Equity Shareholders of the Anannya Realtors/Demerged Company shall be convened and held at the registered office of the Demerged Company at** House No. 3, 2nd Floor, FCI Gate, Swahid Parag Das Path, P.S- Chandmari, Bamunimaidan, Guwahati-781021, Assam at 11.00 am on 28/09/2022. If the same meeting cannot be convened for any reason on 28/09/2022, the said meeting be held soon thereafter on a convenient date. The said meeting of Equity Shareholders, will deliberate upon the proposal for approval of the Proposed Company Scheme of Arrangement and to pass necessary resolution in this respect.

5.7 At such meeting of the Equity Shareholder of the said Demerged Company, **the voting shall be carried out through ballot/polling paper at the venue of the meeting.**

5.8 **At least one month the date of the said meetings of the Equity Shareholders, a notice in Form No. CAA 2 convening the meeting**

indicating the day, the date, the place and the time as aforesaid, together with a copy of the Scheme of Arrangement, copy of the Explanatory Statement required to be sent under Section 102 of the Act, read with Section 230 and 232 of the Act and Rule 6 of the Companies (CAA) Rules, 2016 and the prescribed Form of proxy shall be sent to each of the Equity Shareholder of Anannya Realtors Private Limited, the Demerged Company; at their respective or last known address either by Registered post/ Speed Post or by courier or by e-mail. The notice shall be sent to all the Equity Shareholder of the Demerged Company.

5.9 **At least one month before the date of meeting**, **an advertisement about convening the said meetings, indicating the day, the date, the place and the time as aforesaid, shall be published once in English Daily "The Assam Tribune" and Assamese Daily "Amar Asom".** The publication shall also indicate that the statement required to be furnished pursuant to Section 102 of the Act, read with Section 230 and 232 of the Act and the prescribed proxy can be obtained free of charge at the Registered Office of the Demerged Company or at the office of the learned counsel (Mr. N Gurumurthy Learned CA; Contact number +919830948621) for the applicants in accordance with second proviso to sub-section (3) of Section 230 and Rule 7 of the Companies (CAA) Rules, 2016.

5.10 **Mr. Mahesh Kumar Agarwalla, Director of the Demerged Company shall be the Chairperson, of the said meeting of Equity Shareholders of the Demerged Company to be held on 28/09/2022_ or be held soon thereafter on a convenient date.**

5.11 The Chairperson for the meeting Mr. Mahesh Kumar Agarwalla **may appoint any suitable person as the Scrutinizer for the meetings to be convened.**

5.12 **The Chairperson for the aforesaid meeting shall issue advertisements and send out notices of the said meeting referred to**

above. The Chairperson is free to avail the services of the Demerged Company or any agency for carrying out the aforesaid directions. The Chairman of the meeting shall have all powers under the Article of Association of the Demerged Company and also under applicable rules, including the power for deciding any procedural questions, which may arise at the meeting, amendment(s) to the aforesaid meeting by any persons(s); and to ascertain the decision of the meetings through a poll, by polling paper/ballot.

5.13 The quorum for the meeting of the Equity Shareholders of the Demerged Company **shall be Seven (7) Equity Shareholders with amounting to at least 33% of total value or more**, present in person or by authorized representative or by proxy.

5.14 **Voting by proxy/authorized representative is permitted provided that the proxy is in the prescribed form/authorization duly signed by the person entitled to attend and vote at the aforesaid meetings, is filed with the Applicant Demerged Company at the registered office not later than 48 hours before the said meeting.**

5.15 The number and value of the vote of each Equity Shareholder of the Demerged Company **shall be in accordance with the entries in the book of accounts of the said Demerged Company**; and where the entries in the records are disputed, the Chairman of the meetings shall determine the value for the purpose of the meetings.

5.16 The Chairman **shall file an affidavit not less than 7 (Seven) days before the proposed date fixed for holding of such meeting and its outcome to this as per Rule 12 of the Companies (CAA) Rules, 2016 that direction given by this tribunal for issuance of notice/s and advertisement of notice of meeting are properly followed.**

6. It is further directed that the **Chairman as the case may be shall report to this Tribunal about the result of such meeting held (in Form No. CAA4,**

verified by his affidavit, as per Rule 14 of the Companies (CAA) Rules, 2016) within 15 (fifteen) days from the conclusion of the meeting.

7. In compliance of sub-section (5) of Section 230 of the Act and Rule 8 of the Companies (CAA) Rules, the Applicant Companies **shall send a Notice of meeting in Form No. CAA 3 with a copy of the Scheme of Arrangement, the Explanatory Statement and the disclosures mentioned under Rule 6 (to the extent applicable) to:**

a. **The Central Government through Regional Director, North Eastern Region**
b. **The Registrar of Companies, NER, Guwahati**
c. **The Official Liquidator, Guwahati**
d. **Income Tax Authorities having jurisdiction over the affairs of the Company.**

Stating that representation, if any, to be made by them shall be made within a period of 30 (Thirty) days from the date of receipt of such notice, failing which it will be deemed that they have no objections to make on the proposed Scheme of Arrangement. The said notices shall be sent to the above statutory authorities forthwith, after the notices for meeting to the concerned Equity Shareholders of the Applicant Demerged Company are sent, either by Registered Post or by Speed Post or by Courier or by Hand Delivery at the office of the authorities as required by sub-rule (2) of Rule 8 of the Companies (CAA) Rules, 2016. The aforesaid authorities who desire to make any representation under sub-section (5) of Section 230 shall send the same to this Tribunal with a copy of the same to be sent to the Applicant Companies within a period of 30 (Thirty) days from the date of such service. The said notice shall also be placed on the Company's website.

8. **The Applicant Companies shall file a compliance report with the Registry with regard to the directions given in this Order within 15 days from to-day.**

9. With the aforesaid directions/observations, the present Company Application, being **first motion petition i.e. CA (CAA) No. 6/GB/2022 stands allowed (in terms of its prayer clause) and disposed of.**

Sd/-

(Prasanta Kumar Mohanty)
Member (Technical)

Sd/-

(Deep Chandra Joshi)
Member (Judicial)